

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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AMADA ORTIZ & ANTON NECRAJ,

Plaintiffs,

COMPLAINT

-against-

11 Civ. 2452 (LBS)

THE CITY OF NEW YORK, POLICE OFFICER JOHN
AND JANE DOES 1-5,

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. Plaintiffs bring this civil rights action against the City of New York and several New York City Police Officers alleging that defendants violated their rights under 42 U.S.C. § 1983, the Fourth Amendment to the United States Constitution and New York state law by falsely arresting them, using excessive force on them and illegally strip searching them in the Bronx on February 26, 2011. The Bronx County District Attorney's Office declined to prosecute plaintiffs on the false criminal charges and plaintiffs were released on February 27, 2011, after being held in custody for over 24 hours. Plaintiffs seek compensatory and punitive damages, attorney's fees and costs and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiffs invoke the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide their New York state law claims of false arrest, assault, battery and vicarious liability which form part of the same case and controversy as their federal claims under Article III of the United States Constitution.

4. With respect to plaintiffs' state law claims, notices of claim were duly filed with the City of New York within the time required by law, more than 30 days have elapsed since such filing and the City has not offered to settle plaintiffs' state law claims.

5. Venue is proper in the Southern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because a substantial part of the events giving rise to plaintiffs' claims occurred in this District and because some or all of the defendants reside in this District.

PARTIES

6. Plaintiffs are residents of the Bronx. Amada Ortiz has never before been arrested and has worked at Bellevue Hospital as a Patient Care Associate since 1993. Anton Necraj is employed as a building superintendent.

7. The City of New York is a municipal corporation organized under the laws of the State of New York.

8. New York City Police Officers John and Jane Does 1-5 are New York City Police Officers. Defendants were acting under color of state law and in their capacities as New York City Police Officers at all relevant times. Defendants are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiffs from unconstitutional conduct. The defendants are sued in their individual capacities.

STATEMENT OF FACTS

9. On February 26, 2011, at approximately 6:30 p.m., plaintiffs were passengers in a car that was stopped for no reason by New York City Police Officers on the corner of Davidson Avenue and East Burnside Avenue in the Bronx.

10. A male named Glen was the owner and driver of the car, Glen's nephew Danny was sitting in the front passenger seat and Kevin Slay was sitting in the back seat with plaintiffs. At the time of the stop, Glen was driving Danny home.

11. After stopping the car, the officers ordered the occupants to exit the vehicle and searched each of the occupants as well as the car.

12. Nothing illegal was found anywhere except on Danny who was in possession of a small amount of marijuana.

13. At all relevant times, no illegal contraband was in plain view of plaintiffs or near them, plaintiffs were not aware that Danny was in possession of anything illegal and plaintiffs were never in actual or constructive possession of anything illegal.

14. A Latino female officer searched Ortiz, handcuffed her excessively tight causing pain and bruising and, acting in concert with the other officers, took Ortiz into custody.

15. Within earshot of the other officers, Ortiz asked the female officer to loosen the cuffs but she refused.

16. A Latino male searched Necraj and, for no reason, slammed Necraj down onto the ground, causing him pain and injury.

17. The Latino officer handcuffed Necraj excessively tight causing pain and bruising to Necraj's right wrist, and acting in concert with the other officers, took Necraj into custody.

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18. Within earshot of all of the officers, Necraj asked three officers to loosen the cuffs but they refused.

19. Approximately 45 minutes later, plaintiffs were taken by van to the 46th Precinct.

20. Inside the precinct, the female officer unlawfully strip searched Ortiz.

21. Another female inmate was in a position to observe the search.

22. Ortiz was ordered to pull down her pants and underwear, squat, bend over and cough.

23. The female officer searched Ortiz's bra area with her hands.

24. A white, male officer with a slim build illegally strip searched Necraj in a precinct rest room.

25. Necraj was ordered to pull down his pants and underwear, squat, bend over, lift his genitals and cough.

26. The strip searches of plaintiffs were illegal because plaintiffs had not committed a crime and because no officer had reasonable suspicion to believe that plaintiffs were hiding illegal items under their clothes. The strip search of Ortiz was also illegal because it was conducted in a place where another inmate could observe the search.

27. Those officers who were not present for the strip searches nevertheless knew that plaintiffs were going to be illegally strip searched but they failed to intervene to protect plaintiffs.

28. While plaintiffs were held in cells in the precinct, plaintiffs' designated "arresting officers," misrepresented in police reports that plaintiffs were found in possession of illegal drugs.

29. The other officers who were not filling out the reports knew that plaintiffs were being falsely charged with a crime but they failed to intervene to protect plaintiffs.

30. While Necraj was in custody, the officers denied his requests for food and water.

31. On February 27, 2011, plaintiffs were taken to Bronx Central Booking.

32. Officers strip searched Necraj down to his underwear during the admission process.

33. Plaintiffs were held in cells in Bronx Central Booking which were severely overcrowded, filthy and unsanitary. Necraj contracted ringworm from being held in Bronx Central Booking.

34. While plaintiffs were in custody in Central Booking, plaintiffs' designated "arresting officers," misrepresented to the Bronx County District Attorney's Office that plaintiffs were found in possession of illegal drugs.

35. The other defendants knew that these officers were attempting to commence a bogus prosecution against plaintiffs, but they failed to intervene to protect plaintiffs by, for example, reporting the matter to an NYPD supervisor or to the District Attorney's Office.

36. The Bronx County District Attorney's Office declined to prosecute plaintiffs on the false criminal charges and plaintiffs were released on February 27, 2011, at approximately 8:00 p.m., after being held in custody for over 24 hours.

37. Necraj obtained medical treatment for the ringworm he contracted in Bronx Central Booking.

38. Plaintiffs suffered damage as a result of defendants' actions. Plaintiffs were incarcerated for over 24 hours and deprived of their liberty. Further, plaintiffs suffered emotional distress, fear, anxiety, humiliation, pain and bruising. Necraj also contracted ringworm.

FIRST CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

39. Plaintiffs repeat the foregoing allegations.

40. At all relevant times, plaintiffs had not committed a crime or violation, they were not wanted for a crime or violation and they had not acted in a suspicious manner.

41. Despite plaintiffs' innocence, the defendants arrested plaintiffs or failed to intervene to prevent their false arrests.

42. Accordingly, defendants are liable to plaintiffs under the Fourth Amendment for false arrest.

SECOND CLAIM

(FALSE ARREST UNDER STATE LAW)

43. Plaintiffs repeat the foregoing allegations.

44. At all relevant times, plaintiffs had not committed a crime or violation, they were not wanted for a crime or violation and they had not acted in a suspicious manner.

45. Despite plaintiffs' innocence, the defendants arrested plaintiffs or failed to intervene to prevent their false arrests.

46. Accordingly, defendants are liable to plaintiffs under New York state law for false arrest.

THIRD CLAIM

(UNREASONABLE FORCE)

47. Plaintiffs repeat the foregoing allegations.

48. Defendants' use of force upon plaintiffs or their failure to intervene to prevent this use of force, as described herein, was objectively unreasonable and caused plaintiffs pain and injury.

49. Accordingly, defendants are liable to plaintiffs under the Fourth Amendment for using unreasonable force.

FOURTH CLAIM

(ILLEGAL STRIP SEARCH)

50. Plaintiffs repeat the foregoing allegations.

51. Defendants' strip searches of plaintiffs or their failure to intervene to stop the searches were illegal because plaintiffs had not committed a crime and because no officer had reasonable suspicion to believe that plaintiffs were hiding illegal items under their clothes. The strip search of Ortiz was additionally illegal because it was not conducted in private.

52. Accordingly, defendants are liable to plaintiffs under the Fourth Amendment for illegally strip searching them.

FIFTH CLAIM

(ASSAULT)

53. Plaintiffs repeat the foregoing allegations.

54. Defendants' use of force upon, handcuffing and searches of plaintiffs placed plaintiffs in fear of imminent harmful and offensive physical contacts which injured them.

55. Accordingly, defendants are liable to plaintiffs under New York state law for assault.

SIXTH CLAIM

(BATTERY)

56. Plaintiffs repeat the foregoing allegations.

57. Defendants' use of force upon, handcuffing and searches of plaintiffs were offensive and nonconsensual physical contacts which injured them.

58. Accordingly, defendants are liable to plaintiffs under New York state law for battery.

SEVENTH CLAIM

(VICARIOUS LIABILITY CLAIM AGAINST CITY OF NEW YORK)

59. Plaintiffs repeat the foregoing allegations.

60. Defendants were acting within the scope of their employment as New York City Police Officers when they falsely arrested, assaulted and battered plaintiffs.

61. The City of New York is therefore vicariously liable to plaintiffs under New York state law for false arrest, assault and battery.

EIGHTH CLAIM

(*MONELL* CLAIM AGAINST THE CITY OF NEW YORK)

62. Plaintiffs repeat the foregoing allegations.

63. The City of New York is a "person" within the meaning of 42 U.S.C. § 1983.

64. The City of New York, through a policy, practice or custom, directly caused the constitutional violations suffered by plaintiff.

65. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants and other members of the NYPD are unfit officers who have previously committed acts similar to those alleged herein, have a propensity for unconstitutional conduct and/or have been inadequately trained.

66. Several members of the NYPD have been convicted of crimes for engaging in corruption and for making false allegations.

67. Former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison.

68. In *Colon v. City of New York*, Nos. 09 CV 8, 09 CV 9 (JBW), 2009 WL 4263362 (E.D.N.Y. November 25, 2009), the court stated that an “[in]formal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department.”

69. Despite the above, the City exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline and monitor the defendants and other officers like them.

70. The City’s failure to act resulted in the violation of plaintiffs’ constitutional rights as described herein.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: April 7, 2011

/s/

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